

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kimberly Eldridge	Team: Team # 4	CCRB Case #: 201105019	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/20/2011 3:21 AM	Location of Incident: Broadway and Madison Street; the 81st Precinct stationhouse	Precinct: 81	18 Mo. SOL 10/20/2012	EO SOL 10/20/2012	
Date/Time CV Reported Wed, 04/20/2011 2:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/20/2011 2:25 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Balkarra Mangal	24588	942113	081 PCT
2. POM Diery Louis	29819	940395	081 PCT
3. An officer			081 PCT
4. SGT Boris Blackmon	01411	920032	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Damian Garcia	03928	936639	081 PCT
2. POF Cindy Hammond	29779	915704	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Diery Louis	Force: At the intersection of Broadway and Madison Street in Brooklyn, Officer Diery Louis used pepper spray against § 87(2)(b)	
B.POM Diery Louis	Discourtesy: At the intersection of Broadway and Madison Street in Brooklyn, Officer Diery Louis spoke obscenely to § 87(2)(b)	
C.POM Balkarra Mangal	Discourtesy: At the intersection of Broadway and Madison Street in Brooklyn, Officer Balkarra Mangal spoke obscenely to § 87(2)(b)	
D.POM Diery Louis	Abuse: At the 81st Precinct stationhouse, Officer Diery Louis threatened § 87(2)(b) with the use of force.	
E. An officer	Discourtesy: At the 81st Precinct stationhouse, an officer spoke obscenely to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 20, 2011, § 87(2)(b) filed this complaint via phone with the CCRB on behalf of her husband, § 87(2)(b). § 87(2)(b) did not witness this incident. At 3:50AM on April 20, 2011, Officer Diery Louis and Officer Balkarran Mangal of the 81st Precinct arrested § 87(2)(b) and his friend, § 87(2)(b) following a car stop at the intersection of Broadway and Madison Street in Brooklyn. The following allegations resulted from the officers' actions:

- **Allegation A) Force: At the intersection of Broadway and Madison Street in Brooklyn, Officer Diery Louis used pepper spray against § 87(2)(b)**
§ 87(2)(g)
- **Allegation B) Discourtesy: At the intersection of Broadway and Madison Street in Brooklyn, Officer Diery Louis spoke obscenely to § 87(2)(b)**
- **Allegation C) Discourtesy: At the intersection of Broadway and Madison Street in Brooklyn, Officer Balkarran Mangal spoke obscenely to § 87(2)(b)**
- **Allegation D) Abuse of Authority: At the 81st Precinct stationhouse, Officer Diery Louis threatened § 87(2)(b) with the use of force.**

§ 87(2)(g)

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- **Allegation E) Discourtesy: At the 81st Precinct stationhouse, an officer spoke obscenely to § 87(2)(b)**

§ 87(2)(g)

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- § 87(2)(g), § 87(4-b)

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Results of Investigation

Civilian Statement

Victim: § 87(2)(b)

- *At the time of this incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b). § 87(2)(b) has dark brown hair that he wears in dreadlocks and brown eyes. § 87(2)(b).*

CCRB Statement and Written Statement

On June 3, 2011, § 87(2)(b) was interviewed at the CCRB (enc. B7-B16). On July 8, 2011, § 87(2)(b) e-mailed a copy of a statement that he reportedly wrote on May 21, 2011 (enc. B4-B6). § 87(2)(g)

In the early morning hours of April 20, 2011, § 87(2)(b) and his friends, the names of whom § 87(2)(b) was unsure, but whom the investigation identified as § 87(2)(b) and § 87(2)(b) drove from Queens to Brooklyn in § 87(2)(b)'s grey four door sedan. § 87(2)(b) was unable to provide contact information for any of the aforementioned

individuals. § 87(2)(b) was driving, § 87(2)(b) was in the front passenger seat, § 87(2)(b) was sitting immediately behind § 87(2)(b) sat in the middle of the rear seat, and § 87(2)(b) sat behind § 87(2)(b).

As the males approached the red light at the intersection of Broadway and Madison Street in Brooklyn, they were pulled over by Officer Diery Louis (6'0" tall dark-skinned black male, 170-180 pounds, 30-35 years old, Haitian accent, dressed in uniform) and Officer Balkarran Mangal (5'6"-5'7" tall Hispanic male, 160 pounds, dark hair, dressed in uniform), both of whom were assigned to the 81st Precinct and were identified by name by § 87(2)(b). Officer Louis provided his name to § 87(2)(b) when asked and § 87(2)(b) read Officer Mangal's name off of his name plate.

Officer Louis approached the driver's side of § 87(2)(b)'s vehicle and Officer Mangal approached the passenger's side. Officer Louis asked § 87(2)(b) to provide his license and registration. § 87(2)(b) asked why they were stopped and Officer Louis again asked § 87(2)(b) to provide his documentation. At this time, § 87(2)(b) complied. § 87(2)(b) and § 87(2)(b) repeatedly asked the officers why they were stopped. § 87(2)(b) remained quiet. Officer Louis took § 87(2)(b)'s documentation.

Officer Louis and Officer Mangal briefly went to their vehicle before returning to § 87(2)(b)'s vehicle. Upon the officers' return, § 87(2)(b)'s friends continued to ask them why the vehicle was stopped. § 87(2)(b) began to talk about Penal Law and accused the officers of violating his civil rights. At that time, Officer Louis asked all five males to exit the vehicle. § 87(2)(b) asked the officers why it was necessary to exit the vehicle and indicated that they did not do anything wrong. § 87(2)(b) however, wanted the encounter to end, so he told § 87(2)(b) to unlock the door. § 87(2)(b) opened the rear driver's side door and as he was stepping out of the vehicle, Officer Louis grabbed him by the left arm and pulled him out. § 87(2)(b) did not physically resist and did not say anything at this time. Officer Louis escorted § 87(2)(b) to the rear of § 87(2)(b)'s vehicle and placed him so that he was leaning backwards on the trunk. Officer Louis then returned to the vehicle and again ordered everyone to exit the vehicle. § 87(2)(b) complied and stood near the hood of his vehicle on the driver's side. § 87(2)(b) also complied and stood near on the sidewalk near the front passenger side of the vehicle. § 87(2)(b) did not exit the vehicle. § 87(2)(b) was sleeping in the backseat of the car.

§ 87(2)(b) repeatedly stated that the males had done nothing wrong, so there was no point in him exiting the vehicle. Officer Louis and Officer Mangal attempted to pull § 87(2)(b) from the vehicle, but were unable to do so because he anchored his feet and legs inside of the vehicle. Officer Louis returned to his vehicle and called for backup. Shortly after doing so, multiple police officers responded to the location. Once backup arrived, Officers Louis and Mangal again attempted to pull § 87(2)(b) from the vehicle. § 87(2)(b) continued to anchor himself inside of the vehicle. § 87(2)(b) began to yell for help. Officer Louis told § 87(2)(b) that he would pepper spray him and use physical force to pull him out of the vehicle if he did not willingly exit of his own accord. § 87(2)(b) remained in the vehicle.

At that time, a group of ten officers surrounded the rear driver's side door. Officers Louis and Mangal managed to pull § 87(2)(b) out of the vehicle. Immediately after pulling § 87(2)(b) from the vehicle, Officer Louis pepper sprayed him. At that time, § 87(2)(b) and § 87(2)(b) all began to yell for help. There are high rise apartment buildings in the area, and people began to shout at the officers from their windows. There are numerous stores in the area, but they were all closed. Many people drove past on Broadway, but none of them stopped to observe what was happening.

The group of ten officers swung § 87(2)(b) onto the ground. § 87(2)(b) could not see what, if any, additional action the officers took to get § 87(2)(b) to the ground. § 87(2)(b) could not see how § 87(2)(b) landed on the ground, or what happened when he was on the ground. § 87(2)(b) believed that § 87(2)(b) was handcuffed while he was on the ground, but was not sure. Shortly

after § 87(2)(b) was taken to the ground, unidentified officers somehow picked him up and led him towards a nearby police vehicle. The officers pushed § 87(2)(b) chest first against the vehicle. § 87(2)(b) stated that officers were “beating up” § 87(2)(b) but other than stating that the officers and § 87(2)(b) were “tussling,” § 87(2)(b) could not articulate what the officers were doing at the time. § 87(2)(b) asserted that there were too many officers on top of § 87(2)(b) for him to see what exactly the officers were doing. Officers Louis and Mangal were involved in § 87(2)(b)'s apprehension, but § 87(2)(b) was unable to describe or identify any of the additional eight officers who were also involved. Shortly after pushing § 87(2)(b) against the police vehicle, the officers placed him inside.

After § 87(2)(b) was in the police vehicle, Officer Louis told Officer Mangal to arrest § 87(2)(b). In his CCRB statement, § 87(2)(b) stated that Officer Mangal handcuffed him without incident. In his written statement, however, § 87(2)(b) alleged that Officer Mangal “threw” him over the hood of his police vehicle, handcuffed him, and “verbally abused him” by telling him to “Shut the fuck up” and calling § 87(2)(b) an “asshole.” § 87(2)(b) did not make these allegations in his CCRB statement. Officer Mangal placed § 87(2)(b) into the back of his police vehicle. Officer Mangal then joined Officer Louis at § 87(2)(b)'s vehicle, at which time they woke § 87(2)(b). § 87(2)(b) however, did not know what happened between § 87(2)(b) and the officers.

Officers Louis and Mangal entered their police vehicle. At this time, § 87(2)(b) began yelling at § 87(2)(b) who was standing outside. § 87(2)(b) wanted § 87(2)(b) to contact his wife so that she would know what was going on, and yelled out his wife's phone number so that § 87(2)(b) could copy it down. § 87(2)(b) had to yell because the windows of the police vehicle were up. Officers Louis and Mangal both told § 87(2)(b) “Shut the fuck up” and “Stop being an asshole.” They also called § 87(2)(b) an “idiot.” Officer Louis left the vehicle and returned a few minutes later. § 87(2)(b) later learned that Officer Louis issued a summons for a defective taillight to § 87(2)(b).

Once Officer Louis returned to the vehicle, § 87(2)(b) asked him why he was being arrested. § 87(2)(b) did not use profanity towards Officer Louis, but Officer Louis responded by saying, “Shut the fuck up.” Officer Louis and Officer Mangal then transported § 87(2)(b) to the 81st Precinct stationhouse. Upon arriving, Officer Louis ordered § 87(2)(b) to exit the vehicle. § 87(2)(b) however, had trouble doing so because he was sitting on his handcuffs. Once § 87(2)(b) managed to exit the car, he stated to Officer Louis, “You’re supposed to be a brother and you’re treating me like this?” Officer Louis then stated, “I ain’t your brother.” In his written statement, § 87(2)(b) alleged that at this time, Officer Louis stated to him without being prompted, “Spit on me and see what I do to you.” In his CCRB statement, however, § 87(2)(b) stated that Officer Louis made this statement while they stood at the front desk. § 87(2)(b) never spit on Officer Louis and was not spitting when Officer Louis made this statement. § 87(2)(b) interpreted Officer Louis’ statement as a threat to cause him physical harm. § 87(2)(b) did not respond to Officer Louis’ threat.

While at the front desk, Officer Louis asked § 87(2)(b) to provide his name and pedigree information. § 87(2)(b) asked why it was necessary to do so when Officer Louis already had his identification. Officer Louis told § 87(2)(b) that he had to stay longer at the precinct because he was not cooperating. It was at this time that § 87(2)(b) provided Officer Louis with his first and last name. An unidentified officer, PO2 (a uniformed white male whom § 87(2)(b) was unable to describe further), stated to § 87(2)(b) “Stop acting like a bitch.” § 87(2)(b) stated that he would be unable to distinguish PO2 from other officers and would be unable to identify him via photo array. § 87(2)(b) responded in a conversational tone, “You don’t know me. Don’t disrespect me because I didn’t disrespect you.” At this time, Officer Louis announced that he was placing § 87(2)(b) in a holding cell.

Officer Louis walked § 87(2)(b) to a room that was right before the holding cell area. In his written statement, § 87(2)(b) alleged that Officer Louis strip-searched him by ordering him to push his pants down. In his CCRB statement, § 87(2)(b) elaborated on the allegation and stated that Officer Louis removed § 87(2)(b)'s handcuffs and told § 87(2)(b) to remove the strings from his shoes. Officer Louis then told § 87(2)(b) who was wearing blue jeans, a t-shirt, a black jacket, grey sneakers, and a fitted baseball cap, to push his pants down. § 87(2)(b) was wearing a pair of thermal pants under his jeans and while they were showing, § 87(2)(b)'s underwear was not showing. Officer Louis did not order § 87(2)(b) to remove, lift up, or push down any other articles of clothing. § 87(2)(b) believed that Officer Louis asked him to push down his pants because he noticed that § 87(2)(b) was wearing multiple layers.

Officer Louis then placed § 87(2)(b) in a holding cell that contained § 87(2)(b) and six or seven other male individuals whom § 87(2)(b) did not know. § 87(2)(b) had bruises and red marks on his face, his face was swollen, his eyes were bloodshot, and his lip was bleeding. § 87(2)(b) was “furious.” § 87(2)(b) and Officer Louis argued in the holding cell area, but § 87(2)(b) did not recall the details of the argument. § 87(2)(b) had not yet been treated for pepper spray, which was on his clothes and skin, and was affecting the other prisoners. § 87(2)(b) tried to calm § 87(2)(b) down because he was “over the top,” but it did not work. Because § 87(2)(b) was aggravating the other prisoners, he was moved to an empty holding cell. Officers offered § 87(2)(b) medical treatment and EMS did respond to the precinct, but § 87(2)(b) refused to be treated by EMS.

An hour later, § 87(2)(b) was released with a § 87(2)(b) summons.

Attempts to Contact Civilians

§ 87(2)(b) did not know § 87(2)(b)'s real name and did not have any contact information for him. As per § 87(2)(b)'s arrest report, he was living in § 87(2)(b) at the time of the incident. A search of 411.com failed to confirm § 87(2)(b)'s address or provide any possible phone numbers for him. A search of the DMV website confirmed § 87(2)(b)'s address. A search of the Lexis Nexis database confirmed § 87(2)(b)'s address, but provided a second possible address and two possible phone numbers. On July 13, 2011 and August 24, 2011, the investigator sent a please call letter to § 87(2)(b)'s listed address and the Lexis Nexis provided address. None of the please call letters were returned to the CCRB as unable to forward by the United States Postal Service. One of the Lexis Nexis provided phone numbers was not in service. Between July 19, 2011 and October 28, 2011, the investigator attempted to contact § 87(2)(b) via the second Lexis Nexis provided number five times, leaving voicemail messages on each occasion. A July 24, 2012 search of the New York City Department of Correction Inmate Locator Services website confirmed that § 87(2)(b) is not and has not been incarcerated. To date, § 87(2)(b) has not contacted the investigator.

§ 87(2)(b) was unable to provide any contact information for § 87(2)(b). § 87(2)(b)'s address was obtained from the summons that Officer Louis issued to him. Searches of 411.com and the Queens COLE directory failed to confirm § 87(2)(b)'s address or provide any possible phone numbers for him. A search of the DMV website confirmed § 87(2)(b)'s address. A search of the LexisNexis database confirmed § 87(2)(b)'s address, but failed to provide any phone numbers for § 87(2)(b). The Lexis Nexis search did, however, provide a phone number that was linked to § 87(2)(b)'s address. On July 13, 2011 and August 24, 2011, the investigator sent a please call letter to § 87(2)(b) at his listed address. Neither of the please call letters were returned to the CCRB as unable to forward by the United States Postal Service. On August 24, 2011, the investigator attempted to contact § 87(2)(b) via the Lexis Nexis provided

phone number. On each occasion, however, a voice prompt indicated that the number was not in service. A July 24, 2012 search of the New York City Department of Correction Inmate Locator Services website confirmed that § 87(2)(b) is not and has not been incarcerated. To date, § 87(2)(b) has not contacted the investigator.

§ 87(2)(b) did not know § 87(2)(b)'s name and was unable to provide contact information for him. § 87(2)(b)'s address was obtained from Officer Louis' memo book. Searches of 411.com and the Queens COLE directory failed to confirm § 87(2)(b)'s address or provide any alternate contact information for him. Searches of the DMV website and the Lexis Nexis database confirmed § 87(2)(b)'s address, but did not provide any possible phone numbers for him. On July 13, 2011 and August 24, 2011, the investigator sent a please call letter to § 87(2)(b) via his listed address. Neither of the please call letters were returned to the CCRB as unable to forward by the United States Postal Service. A July 24, 2012 search of the New York City Department of Correction Inmate Locator Services website confirmed that § 87(2)(b) is not and has not been incarcerated. To date, § 87(2)(b) has not contacted the investigator.

§ 87(2)(b) was unable to provide contact information for § 87(2)(b). None of the paperwork generated in relation to this incident lists § 87(2)(b) as being present or involved in this incident. § 87(2)(b) was unable to provide any additional identifying information about § 87(2)(b). A search of the CCRB's Complaint Tracking System indicated that § 87(2)(b) has not filed or been a part of any additional CCRB complaints. A search of the New York City Department of Correction Inmate Locator Services website indicated that § 87(2)(b) is not and has not been incarcerated. Searches of 411.com and the Lexis Nexis database provided numerous results for people with the last name § 87(2)(b) and the first initial "§ 87(2)(b) § 87(2)(g)".

NYPD Statements

Subject Officer: OFFICER DIERY LOUIS (81st PRECINCT)

- *Officer Diery Louis is a § 87(2)(b)-old Black male who is § 87(2)(b). Officer Louis has black hair and brown eyes.*
- *On April 20, 2012, Officer Louis worked from 11:15PM the previous day to 7:50AM that morning. Officer Louis and his partner, Officer Mangal, were dressed in uniform and were assigned to patrol sectors E and G in marked RMP 2134.*

Memo Book

Officer Louis had one memo book entry regarding this incident (enc. C1-C4). At an unspecified time, Officer Louis and Officer Mangal conducted a car stop at the corner of Broadway and Madison Street. Officer Louis issued a summons to § 87(2)(b) for having a defective rear light. Officer Louis also completed a Stop, Question, and Frisk report for § 87(2)(b) for suspicion of Criminal Possession of a Weapon. Lastly, Officer Mangal arrested § 87(2)(b) for § 87(2)(b) after § 87(2)(b) refused to exit § 87(2)(b)'s vehicle, screamed at police officers, resisted arrest, and caused a crowd to gather at the location.

Summonses

Officer Louis issued § 87(2)(b) summons § 87(2)(b) for § 87(2)(b) (enc. C5).
Officer Louis issued § 87(2)(b) summons § 87(2)(b) for § 87(2)(b) (enc. C6).

CCRB Statement

On December 21, 2012, Officer Diery Louis was interviewed at the CCRB (enc. C9-C12). Officer Louis' statement is summarized below.

Officer Louis and Officer Mangal were traveling south on Broadway when Officer Louis observed a vehicle that had a defective taillight driving north on Broadway. Officer Louis decided to stop the vehicle to issue the driver a summons for having a defective taillight. Officer Louis made a U-turn and stopped the vehicle on the north side of Broadway. Officer Louis approached the driver's side and Officer Mangal approached the passenger side. There were four black males in the vehicle. Before Officer Louis could explain the reason for the stop and request the driver's documentation, one of the passengers in the rear of the vehicle, later identified as § 87(2)(b) rolled down the window and started screaming at Officer Louis. § 87(2)(b) asked why the vehicle had been stopped and accused the officers of racially profiling them. Officer Louis stated to § 87(2)(b) "I will explain why I pulled you over. Give me a chance to speak to the driver." § 87(2)(b) however, continued to yell and scream, making it difficult for Officer Louis to speak with the driver. Officer Louis repeatedly ordered § 87(2)(b) to calm down and relax, but § 87(2)(b) failed to comply with the directive.

Officer Louis asked the driver, identified via the CCRB as § 87(2)(b) to provide his license and registration. As § 87(2)(b) was reaching towards Officer Louis with documents in hand, § 87(2)(b) reached forward and grabbed the license and registration, presumably in an effort to prevent § 87(2)(b) from giving the documents to Officer Louis. Officer Louis ordered § 87(2)(b) to stop interfering and release the documents. § 87(2)(b) told Officer Louis that he had no right to issue him that order, reached towards the vehicle's rear window, and grabbed a Penal Law handbook. § 87(2)(b) told Officer Louis that he knew the law. Officer Louis responded, "This has nothing to do with the Penal Law. Let me deal with the driver. If you want to talk to me after I'm done, we can talk." § 87(2)(b) continued to scream, and began to exclaim that police officers were beating him up. § 87(2)(b) however, remained seated in the vehicle at this time and neither Officer Louis nor Officer Mangal had made any physical contact with him. The other three civilians remained calm throughout this portion of the encounter.

Civilians who were driving by the area slowed down and stopped to stare. People who live in the apartment buildings in the area opened their windows to watch the incident unfold. A crowd of five to seven civilians who were passing the area on foot formed a small crowd at the location. Officer Louis worried that the situation was rapidly deteriorating, so he asked § 87(2)(b) to exit the vehicle so that he could deal with § 87(2)(b) separately. Officer Louis asked twice and § 87(2)(b) refused both times. At this time, Officer Mangal called for additional officers to respond to the location. Officer Louis then opened the rear door and again ordered § 87(2)(b) to exit the vehicle. § 87(2)(b) moved backwards and away from the open door. § 87(2)(b) then quickly jumped out of the vehicle. § 87(2)(b) immediately moved to a fighting stance with one foot in front of the other and both fists held up at chest level. § 87(2)(b) was the only civilian who exited the vehicle at this time. Officer Louis stated to § 87(2)(b) "We're not going to take it there. Listen, I'll run your name for warrants. If you have a warrant, I will take you to jail. Otherwise, calm down and I will release you with only a summons and you can be on your way." § 87(2)(b) refused to provide his identification and stated that he would not cooperate with the officers. At that time, Officer Louis told § 87(2)(b) that he was under arrest.

Officer Louis reached out to grab § 87(2)(b)'s arm, but § 87(2)(b) pulled away and held his arms in the air. Officer Louis made subsequent attempts to grab § 87(2)(b)'s arms, but he moved them around, preventing Officer Louis from doing so. Officer Louis repeatedly told § 87(2)(b)

§ 87(2)(b) to stop resisting, but § 87(2)(b) did not comply. Officer Louis removed his pepper spray from his belt and stated, “If you keep resisting, I will pepper spray you.” § 87(2)(b) told Officer Louis to do what he had to do. Officer Louis then directed § 87(2)(b) to stop resisting and allow himself to be handcuffed. § 87(2)(b) however, continued to flail his arms. Officer Louis pepper sprayed § 87(2)(b). Officer Louis was the only officer to do so. § 87(2)(b) closed his eyes and began screaming. The pepper spray temporarily immobilized § 87(2)(b) but § 87(2)(b) began to state that police officers were beating him up. Officer Louis and at least one other officer (the identity of whom Officer Louis did not recall) pushed § 87(2)(b) against the side of the civilian vehicle. § 87(2)(b)'s stomach, chest, and shoulders made contact with the vehicle. § 87(2)(b) moved his torso around and continued to pull his arms away from the officers. § 87(2)(b) also kicked his legs out, but did not make contact with Officer Louis or any other officer. It took approximately three officers to hold § 87(2)(b) still while Officer Louis and a second officer handcuffed him. Once § 87(2)(b) was handcuffed, he continued to move his torso. The officers, however, pulled § 87(2)(b) to a nearby police vehicle and placed him inside.

After § 87(2)(b) was pepper sprayed, the three other occupants exited the vehicle. Officer Louis did not see when or how exactly they exited the vehicle and did not know the circumstances of their exit from the vehicle. Officer Louis did not notice them until he heard one of the occupants, later identified as § 87(2)(b), screaming at the officers. Officer Louis repeatedly asked § 87(2)(b) to calm down and tried to explain the situation to him. § 87(2)(b) approached Officer Louis and yelled and screamed. Officer Louis did not recall the exact statements § 87(2)(b) was making at this time. Officer Louis again asked § 87(2)(b) to calm down. When § 87(2)(b) failed to change his behavior, Officer Louis told him to turn around. Officer Louis handcuffed § 87(2)(b) and placed him under arrest for disorderly conduct. Officer Louis did not have any difficulty handcuffing § 87(2)(b). Officer Louis placed § 87(2)(b) inside of his RMP. Officer Louis then returned to § 87(2)(b)'s vehicle and issued him a summons for defective taillight.

Officer Louis and Officer Mangal transported § 87(2)(b) to the 81st Precinct stationhouse. § 87(2)(b) yelled for the duration of the trip and told the officers that they were “fucking assholes.” § 87(2)(b) told the officers they had no reason to stop the vehicle and stated that he knew the law because his girlfriend was a lawyer. At no time did Officer Louis or Officer Mangal respond to § 87(2)(b)'s statements or use profanity towards § 87(2)(b).

Once at the precinct, Officer Louis stood with § 87(2)(b) at the front desk. § 87(2)(b) refused to provide his pedigree information so that it could be entered into the Command Log. Officer Louis explained that they would have to enter § 87(2)(b) as a John Doe and if they did that, § 87(2)(b) would have to remain in custody because they would be unable to verify his identity and would not be able to process him as an arrest or release him with a summons. § 87(2)(b) still refused to provide the information. Officer Louis did not recall if there were any officers in the vicinity aside from the desk officer. Officer Louis did not hear an officer use profanity towards § 87(2)(b) at this time.

Officer Louis led § 87(2)(b) to a room near the holding cells to conduct a thorough search of § 87(2)(b)'s person. Officer Louis directed § 87(2)(b) to remove his shoelaces and take off his belt. § 87(2)(b) removed his sweater because it had a string on it. Lastly, § 87(2)(b) was wearing two pairs of pants—jeans over sweatpants that had pockets. Officer Louis told § 87(2)(b) to lower his jeans to mid-thigh and then asked him to turn his sweatpants pockets inside out. At no time did § 87(2)(b) remove his pants or any other article of clothing aside from his sweater. § 87(2)(b) was not strip-searched. Officer Louis then led § 87(2)(b) to the holding cell area.

§ 87(2)(b) continued to protest his arrest and even spit on the right side of Officer Louis' face. Officer Louis immediately went to the bathroom to wash his face. Officer Louis did not say anything to § 87(2)(b) prior to going to the bathroom and did not address § 87(2)(b)'s behavior.

Officer Louis did not state, “If you spit on me, there’s going to be a problem.” Officer Louis did not threaten § 87(2)(b) with the use of force. Minutes later, Officer Louis returned to the holding cell area. Officer Louis offered to explain the reason for the stop of the vehicle. § 87(2)(b) agreed to listen. After explaining the situation, § 87(2)(b)’s demeanor changed dramatically. § 87(2)(b) was calmer and not argumentative. Officer Louis again asked § 87(2)(b) to provide his pedigree information and § 87(2)(b) cooperated. Because § 87(2)(b) responded so positively to the explanation and had become cooperative, Officer Louis decided to release § 87(2)(b) with a summons for disorderly conduct.

§ 87(2)(b) was brought before the front desk at the same time as § 87(2)(b) § 87(2)(b) however, was loud and belligerent and was quickly removed to the holding cell area. § 87(2)(b)’s behavior was listed as “combative” in the Command Log. Once inside of the holding cell, § 87(2)(b) § 87(2)(b) kicked the cell bars and continued to scream and yell. EMS was called to treat § 87(2)(b) for the pepper spray exposure, but § 87(2)(b) refused medical treatment.

Subject Officer: OFFICER BALKARRAN MANGAL (81st PRECINCT)

- *Officer Balkarran Mangal is a § 87(2)(b)-old Asian male who is § 87(2)(b) § 87(2)(b). Officer Mangal has grey hair and brown eyes.*
- *On April 20, 2012, Officer Mangal worked from 11:15PM the previous day to 7:50AM that morning. Officer Mangal and his partner, Officer Diery Louis, were dressed in uniform and were assigned to patrol sectors E and G in a marked RMP.*

Memo Book

Officer Mangal had two memo book entries regarding this incident (enc. C13-C18). At 3:01AM, Officer Mangal and Officer Louis conducted a car stop at Broadway and Madison Street. By 3:21PM, § 87(2)(b) was under arrest for § 87(2)(b).

Arrest Paperwork

Officer Mangal completed a criminal complaint report and an OLBS worksheet for § 87(2)(b) (enc. C19-C20 and C22-C24). § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement

On December 22, 2011, Officer Balkarran Mangal was interviewed at the CCRB (enc. C25-C27). Officer Mangal’s statement is summarized below.

Officer Mangal’s reason for stopping § 87(2)(b)’s vehicle was the same as that of Officer Louis. After stopping the vehicle, Officer Mangal approached the passenger side and Officer Louis approached the driver’s side. There were five black males in the car. The windows on the passenger side of the vehicle were rolled up. From where Officer Mangal stood, he could not hear what, if anything, Officer Louis said to anyone on the driver’s side of the vehicle.

Less than a minute after approaching the vehicle, the male in the center of the rear seat, later identified as § 87(2)(b) began to yell and scream. Officer Mangal focused his attention on § 87(2)(b) at which time he observed § 87(2)(b) moving around “violently.” § 87(2)(b) moved from left to right, front to back, and reached both in front and behind himself. Officer Mangal did not observe § 87(2)(b) take or attempt to take anything from any of the occupants of the vehicle or Officer Louis. Officer Mangal, however, did not know what § 87(2)(b) was doing and did not have

complete sight of § 87(2)(b)'s hands. § 87(2)(b)'s behavior caused Officer Mangal to fear for his safety and that of Officer Louis.

§ 87(2)(b) repeatedly accused the officers of violating his rights and stated that he was being kidnapped. As § 87(2)(b)'s behavior escalated, so too did that of § 87(2)(b) and the other passengers. § 87(2)(b) and other passengers became loud and yelled with § 87(2)(b). Officer Mangal walked backwards to his vehicle to call for additional units. Seconds later, Officer Mangal returned to the civilian's vehicle. At that time, Officer Mangal observed Officer Louis ordering § 87(2)(b) to exit the vehicle. Officer Mangal heard Officer Louis issue the directive at least three times and § 87(2)(b) refused each time. Additional officers had begun to arrive at the location. Officer Mangal turned to speak with two of the additional officers. Fifteen seconds later, Officer Mangal turned back around, at which time he observed § 87(2)(b) outside of the car. Officer Mangal did not see when or how § 87(2)(b) exited the car.

§ 87(2)(b) flailed his arms and pushed the officers who were trying to grab his arms and place him in handcuffs. Officer Mangal did not recall the identities of the officers who were trying to apprehend § 87(2)(b) but Officer Mangal joined the effort. § 87(2)(b) stepped backwards in an effort to get away from the officers, and the officers were able to corner him to the front of a marked RMP. § 87(2)(b) continued to flail his arms, but Officer Mangal grabbed one of § 87(2)(b)'s arms and held on. Another officer held § 87(2)(b)'s other arm. Officer Mangal and the officer pulled § 87(2)(b)'s arms behind his back while the other officers turned his body and held him against the front of the RMP. At no point did Officer Mangal observe Officer Louis or any other officer pepper spray § 87(2)(b). At no point was § 87(2)(b) on the ground. Aside from pulling § 87(2)(b)'s arms behind his back, neither Officer Mangal nor any officer he witnessed used any additional force to apprehend § 87(2)(b). At no time did Officer Mangal or any other officer punch, kick, or otherwise strike § 87(2)(b). After § 87(2)(b) was handcuffed, Officer Mangal and at least one other officer placed § 87(2)(b) into the backseat of the RMP. Once in the RMP, § 87(2)(b) continued to resist by slamming his body against the RMP door and yelling at the officers.

The male who was sitting in the vehicle to the left of § 87(2)(b) later identified as § 87(2)(b) was also standing outside of the vehicle. Officer Mangal did not see when or how he exited the vehicle. § 87(2)(b) was yelling, but Officer Mangal did not recall what he was saying. At some point § 87(2)(b) had been handcuffed, but Officer Mangal did not see when or how that happened. Officer Mangal was not involved in handcuffing § 87(2)(b). Officer Mangal and Officer Louis briefly spoke with the supervisor on scene, Sergeant Blackmon, before transporting § 87(2)(b) to the 81st Precinct stationhouse. Officer Mangal did not recall § 87(2)(b)'s demeanor during transport. Neither Officer Mangal nor Officer Louis engaged § 87(2)(b) in conversation during transport. At no time did Officer Mangal or Officer Louis use profanity towards § 87(2)(b).

Once at the precinct, the officers did not have any difficulty removing § 87(2)(b) from their vehicle and escorting him into the stationhouse. Once inside of the stationhouse, Officer Mangal left § 87(2)(b) and Officer Louis at the front desk and went to the locker room to retrieve a personal item. Officer Mangal did not see § 87(2)(b) after leaving him at the desk.

The next time Officer Mangal saw § 87(2)(b) was in the holding cell area. § 87(2)(b) was highly combative and had to be separated from the other prisoners. § 87(2)(b) refused to be fingerprinted or to have his arrest photo taken. § 87(2)(b) did not complain of injury and did not appear to be injured.

Subject Officer: SERGEANT BORIS BLACKMON (81st PRECINCT)

- *Sergeant Blackmon is a § 87(2)(b)-old Black male who is § 87(2)(b). Sergeant Blackmon has black hair and brown eyes.*

- *On April 20, 2012, Sergeant Blackmon worked from 11:05PM the previous night to 8:02AM that morning. Sergeant Blackmon was dressed in uniform and was the patrol supervisor. Sergeant Blackmon was working alone at the time of this incident and was assigned to a marked RMP.*

Memo Book

Sergeant Blackmon did not have any entries in his memo book regarding this incident (enc. C28-C29).

CCRB Statement

On January 31, 2012, Sergeant Boris Blackmon was interviewed at the CCRB (enc. C30-C31). Officer Blackmon's statement is summarized below.

Shortly after 3:00AM on April 20, 2012, Sergeant Blackmon responded to Madison Street and Broadway following a call for assistance from Officers Louis and Mangal. Sergeant Blackmon arrived at the location a minute or two after hearing the call. There were already a large number of officers present, but Sergeant Blackmon could not recall their identities. Sergeant Blackmon was the only supervisor at the scene.

When he arrived, Sergeant Blackmon spoke with Officer Louis, who explained that multiple individuals had been arrested following a car stop. At that time, Sergeant Blackmon noticed that the individuals were already inside of separate police vehicles. Sergeant Blackmon did not observe their apprehensions nor did he participate in them. Sergeant Blackmon authorized the arrests and told Officers Louis and Mangal to transport the individuals to the stationhouse. Sergeant Blackmon then left the scene and went to the 81st Precinct stationhouse.

Sergeant Blackmon was in the vicinity of the front desk when individuals were brought into the stationhouse. The individuals verbally protested their arrests, but Sergeant Blackmon did not recall what they were specifically saying. Sergeant Blackmon did not recall any of the civilians being uncooperative at the front desk and did not recall whether any of the civilians refused to provide their pedigree information. Sergeant Blackmon did not recall the identities of other officers who may have been in the vicinity of the front desk at the time. Sergeant Blackmon did not recall whether an officer used profanity towards any of the arrested individuals at the front desk. Sergeant Blackmon did not hear Officer Louis accuse any of the arrested individuals of spitting nor did he hear Officer Louis threaten any of the arrested individuals with the use of force. None of the males appeared to be injured or complained of injury. After the males were entered in the Command Log, they were lodged in the holding cells. Sergeant Blackmon then resumed patrol.

Witness Officer: SERGEANT DAMIAN GARCIA (81st PRECINCT)

- *Sergeant Damian Garcia is a § 87(2)(b) -old Hispanic male who is § 87(2)(b) . Sergeant Garcia has black hair and brown eyes.*
- *On April 20, 2011, Sergeant Garcia worked from 11:05PM the previous evening to 8:02AM that morning. Sergeant Garcia was dressed in uniform, and was on desk duty. Sergeant Garcia did not have any partners.*

Memo Book

Sergeant Garcia did not have any entries in his memo book regarding this incident, and noted that all of his activities are noted in the 81st Precinct's Command Log (enc. D11-D15).

CCRB Statement

On April 3, 2012, Sergeant Damian Garcia was interviewed at the CCRB (enc. C24-C35). Sergeant Garcia had no recollection of what, if anything, occurred when § 87(2)(b) was brought into

the stationhouse. The investigator provided Sergeant Garcia with a brief synopsis of the incident, and showed him photos of both § 87(2)(b) and § 87(2)(b) neither of which helped to jog his memory. Sergeant Garcia reviewed the command log, and confirmed that it was his handwriting and he entered § 87(2)(b) and § 87(2)(b)'s information into the log. Sergeant Garcia did not recall if either male refused to provide their pedigree information or any other information that was asked of them. Sergeant Garcia did not recall whether either of the males had a volatile demeanor or caused a disturbance either at the front desk or in the holding cell area. Sergeant Garcia did not recall whether Officer Mangal or Officer Louis indicated that they had an issue with an uncooperative prisoner, or whether either officer had problems with a prisoner while they were at the front desk. Sergeant Garcia did not recall whether there were other officers who were assigned to a duty that would have placed them at the desk with or near him. Sergeant Garcia did not recall whether he heard any officer use profanity towards § 87(2)(b) or threaten him with the use of force.

Witness Officer: OFFICER CINDY HAMMOND (81st PRECINCT)

- *Officer Cindy Hammond is a § 87(2)(b)-old black female who is § 87(2)(b). Officer Hammond has brown hair and brown eyes.*
- *On April 20, 2012, Officer Hammond worked from 11:15PM the previous day to 7:05AM that morning. Officer Hammond was dressed in uniform and was the Telephone/Switchboard (T/S) Operator.*

Memo Book

Since Officer Hammond was not involved in this incident, she did not have any entries in her memo book regarding this incident.

CCRB Statement

On June 4, 2012, Officer Cindy Hammond was interviewed at the CCRB (enc. C36-C37). Officer Hammond had no recollection of this incident. The investigator provided Officer Hammond with a brief synopsis of the incident and showed her a photo of § 87(2)(b) neither of which helped to jog her memory. Officer Hammond did not recall any problems with prisoners at the front desk and did not recall an instance where a prisoner refused to provide his pedigree information. Officer Hammond noted that the 81st Precinct is busy at all times, and there were probably numerous officers milling about, but she did not recall an instance where an officer and a civilian had a verbal confrontation in the vicinity of the front desk or where an officer used profanity towards a civilian or threatened a civilian with the use of force.

NYPD Documents

SPRINT Index

As per the SPRINT Index from April 20, 2012, there were no SPRINTS generated in relation to this incident (enc. D1-D2).

§ 87(2)(b)'s Arrest Photo

§ 87(2)(b) does not appear to have any injuries in his arrest photo (enc. D10).

Command Log

As per the 81st Precinct's Command Log, § 87(2)(b) and § 87(2)(b) were brought before the front desk at 3:35AM (enc. D11-D15). § 87(2)(b)'s physical condition was listed as combative. It was also noted that § 87(2)(b) was pepper sprayed and that § 87(2)(b) refused medical treatment

from EMS at § 87(2)(b) . § 87(2)(b) was taken to § 87(2)(b) at § 87(2)(b) § 87(2)(b) s entry notes that he was released with a summons at § 87(2)(b)

Roll Call

As per the 81st Precinct's Tour 1 Roll Call from April 20, 2011, there were fourteen white male officers and six Hispanic male officers on duty at the time of this incident (enc. D16-D24).

Interrupted Patrol Log

As per the 81st Precinct's Interrupted Patrol Log from April 19, 2011 and April 20, 2011, six of the above mentioned white or Hispanic males were reportedly at the stationhouse at the time that § 87(2)(b) was brought before the front desk (enc. D25-D26).

Disposition of Summonses and Arrest

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Status of Civil Proceedings

- On § 87(2)(b) , § 87(2)(b) filed a federal Notice of Claim with the Eastern District of the United States District Court (enc. F1-F23). § 87(2)(b) alleged officers "assaulted and battered" him and used pepper spray against him. § 87(2)(b) also alleged that one of the officers (he did not specify which one) "challenged him to a fight" by encouraging § 87(2)(b) to spit on him and calling § 87(2)(b) "brother."

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- § 87(2)(b)
§ 87(2)(b)
- § 87(2)(b)
§ 87(2)(b)
- § 87(2)(b)
§ 87(2)(b)

Civilian CCRB History

- This is the first and only CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (enc. A5 and A7).
- This is § 87(2)(b) s third CCRB complaint (enc. A6). § 87(2)(b)

Subject Officer CCRB History

- The CCRB has not substantiated any allegations against Officer Louis or Officer Mangal in their six years of service to the NYPD (enc. A1-A2 and A3).
- The CCRB has not substantiated any allegations against Sergeant Blackmon in his fourteen years of service to the NYPD (enc. A4).

Conclusion

Identification of Subject Officers

- Officer Louis stated that he pepper sprayed § 87(2)(b) § 87(2)(g) [REDACTED]
- § 87(2)(b) stated that Officer Louis and Officer Mangal used profanity towards them while he was inside of their RMP. Officer Louis and Officer Mangal match the descriptions provided by § 87(2)(b). Additionally, Officer Louis and Officer Mangal stated that they were inside of the RMP when the profanity was allegedly used. § 87(2)(g) [REDACTED]
- § 87(2)(b) stated that Officer Louis accused him of spitting and threatened him with the use of force. § 87(2)(g) [REDACTED].
- § 87(2)(b) alleged that an unidentified officer cursed at him inside of the 81st Precinct. § 87(2)(b) stated that the officer was a uniformed white male, but was unable to describe him further. § 87(2)(b) also stated that he would be unable to distinguish the subject officer from any other officer and would be unable to identify the officer via photo array. § 87(2)(b) stated that there were no other civilians around him at the time the subject officer allegedly used profanity. Officer Louis, Sergeant Garcia, Sergeant Blackmon, and Officer Hammond, all of whom were reportedly near § 87(2)(b) when this allegation occurred, denied hearing any officer use profanity towards § 87(2)(b) and were unable to identify any additional officers who may have been in the vicinity at the time. As per the 81st Precinct's Tour 1 Roll Call, there was a combined total of twenty white or Hispanic males who were on duty and who, based on their assignments, were in uniform. The Interrupted Patrol Log indicates that six of the twenty officers were reportedly at the stationhouse at the time of the incident. The Interrupted Patrol Log, however, did not list the officers who had an arrest at 11:40PM the night before, and who presumably were at the station house processing the arrest. § 87(2)(g) [REDACTED]

Investigative Findings and Recommendations

- **Allegation A) Force: At the intersection of Broadway and Madison Street in Brooklyn, Officer Diery Louis pepper sprayed § 87(2)(b)**

It is undisputed that Officer Louis pepper sprayed § 87(2)(b). Officer Louis stated that he pepper sprayed § 87(2)(b) because § 87(2)(b) resisted arrest and failed to comply with the numerous directives that he issued to him. § 87(2)(b) stated that Officer Louis pepper sprayed § 87(2)(b) immediately after he pulled § 87(2)(b) from § 87(2)(b)'s vehicle. § 87(2)(b) did not indicate that § 87(2)(b) resisted once out of the vehicle, and noted that everything happened very quickly. § 87(2)(g) [REDACTED]

- **Allegation B) Discourtesy: At the intersection of Broadway and Madison Street in Brooklyn, Officer Diery Louis spoke obscenely to § 87(2)(b)**
- **Allegation C) Discourtesy: At the intersection of Broadway and Madison Street in Brooklyn, Officer Balkarran Mangal spoke obscenely to § 87(2)(b)**

§ 87(2)(b) alleged that Officers Louis and Mangal told him to “Shut the fuck up” and called him an “asshole” while he was inside of the officers’ police vehicle. Both Officer Louis and Officer Mangal denied using profanity towards § 87(2)(b) and Officer Louis stated that it was § 87(2)(b) who was using profanity towards the officers. As per § 87(2)(b)’s statement and that of the officers, there were no additional officers or civilians in the police vehicle at the time. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

- **Allegation D) Abuse of Authority: At the 81st Precinct stationhouse, Officer Diery Louis threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) alleged that Officer Louis stated to him, “If you spit on me, there’s going to be a problem.” § 87(2)(b) interpreted this statement as a threat of force. In his written statement, § 87(2)(b) stated that this allegation occurred as Officer Louis and Officer Mangal were escorting him into the stationhouse. In his CCRB statement, § 87(2)(b) alleged that this allegation occurred while he was being processed at the front desk. § 87(2)(b) made this allegation in his Notice of Claim statement, § 87(2)(g).

Officer Louis stated that § 87(2)(b) spit on him while they spoke inside of a holding cell, but denied making this statement and denied threatening § 87(2)(b) with the use of force. Officer Mangal denied hearing Officer Louis make this statement at any point during the incident, but noted that he was not at the front desk when § 87(2)(b) was being processed. Sergeant Blackmon was not present when § 87(2)(b) was being led into the stationhouse, but did observe § 87(2)(b) at the front desk. Sergeant Blackmon did not hear Officer Louis make the above statement or threaten him with the use of force. Sergeant Garcia and Officer Hammond had no recollection of this incident. As per § 87(2)(b) there were no other civilians in the vicinity at the time. Officer Louis and Sergeant Blackmon, however, stated that § 87(2)(b) was at the desk with § 87(2)(b) § 87(2)(g).

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

- **Allegation E) Discourtesy: At the 81st Precinct stationhouse, an officer spoke obscenely to § 87(2)(b)**

§ 87(2)(b) alleged that an unidentified officer told him “Stop acting like a bitch” while he was in the vicinity of the front desk at the 81st Precinct stationhouse. § 87(2)(b) was unable to provide a detailed description of the subject officer and stated that he would be unable to identify the officer via photo array. Officer Louis, Officer Hammond, Sergeant Blackmon, and Sergeant Garcia were unable to identify any additional officers who may have been in the area at the time this allegation reportedly occurred and denied hearing any officer use profanity towards § 87(2)(b) § 87(2)(g).

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted].

- § 87(2)(g), § 87(4-b) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted].

Team: 4

Investigator:	_____	<u>Kimberly Eldridge</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date